

2023 Y L R 203

[Lahore (Rawalpindi Bench)]

Before Jawad Hassan, J

Engineer IRFAN AHMAD QURESHI---Petitioner

Versus

UNIVERSITY OF ENGINEERING and others---Respondents

Writ Petition No. 2567 of 2016, decided on 13th September, 2022.

University of Engineering and Technology Taxila Act (XII of 1994)---

---S. 22(2)(xxii)--- Constitution of Pakistan, Arts. 3, 5(2), 25 & 199---Constitutional petition---Discrimination---Honorary degree, awarding of---Petitioner was PhD scholar who was aggrieved of refusal of University authorities to extend time for submitting his thesis---During pendency of petition, petitioner died and his father appeared on his behalf---Validity---Obedience to Constitution and law under Art. 5(2) of the Constitution was inviolable obligation of every citizen, including respondent/ University---Petitioner died and non-awarding of degree was exploitation under the provisions of Art. 3 of the Constitution---Due to unforeseen and unavoidable personal reasons, thesis could not be submitted within the stipulated time---Petitioner sought extension of time which was declined by Academic Council but in the same meeting extension was granted to similarly placed PhD students, for which respondent/University authorities had no satisfactory reply---Inaction of respondent/University authorities violated provisions of Art.25 of the Constitution---High Court directed Syndicate of University who had the authority/ mandate to confer honorary degrees as per S.22(2)(xxii) of University of Engineering and Technology Taxila Act, 1994, to consider case of petitioner for awarding honorary degree by providing proper hearing to all concerned---Constitutional petition was disposed of accordingly.

Mst. Fatima Faryad and others v. Government of Punjab and others 2020 CLC 836; National Bank of Pakistan v. Iftikhar Rasool Anjum and others 2017 PLC (C.S.) 453; Bahadur Khan and others v. Federation of Pakistan through Secretary Ministry of Finance, Islamabad and others 2017 SCMR 2066; Justice Qazi Faez Isa and others v. President of Pakistan and others PLD 2022 SC 119; National Commission on Status of Women through Chairperson and others v. Government of Pakistan through Secretary Law and Justice and others PLD 2019 SC 218; Syed Tahir Hussain Mehmoodi and others v. Agha Syed Liaqat Ali and others 2014 SCMR 637 and Watan Party and another v. Federation of Pakistan and others PLD 2011 SC 997 ref.

Kashif Ali Malik, Advocate Supreme Court with Barrister Dr. Waseem Ahmad Qureshi, Advocate Supreme Court for Petitioner.

Sajid Khan Tanoli, Deputy Attorney General and Asif Ikram, Assistant Attorney General.

Mirza Asif Abbas, Assistant Advocate-General.

Raja Waqar Ilyas for RDA.

Ch. Farhat Abbas with Muhammad Yaqub, Director and Khalid Mehmood, Registrar, University of Engineering, Taxila.

ORDER

JAWAD HASSAN, J.---The Petitioner through this writ Petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution") has prayed that the he was denied extension of time (one year) for submission of his PhD thesis despite of the fact that similarly placed students have been allowed the same relief.

2. Dr. Waseem Ahmad Qureshi, ASC at the outset submits that during pendency of this Petition, the Petitioner has died due to COVID-19 on 20.07.2021 but despite of availing sufficient opportunities before this Court, the Respondent/University did not take positive steps for extension of time for submission of thesis. Learned counsel further submits that inaction on part of Respondent/ University infringed fundamental right of the Petitioner guaranteed under the Constitution. He has drawn attention of the Court towards the provisions of Article 14 of the Constitution which provides that the dignity of man. He clarifies that under the provisions of Article 3 of the Constitution the State shall ensure the elimination of all forms of exploitation. He maintains that as per Article 4 of the Constitution, it is an inalienable right of every citizen to be treated in accordance with law and no action detrimental to his/her life, liberty or body shall be taken except as per law.

3. Dr. Waseem Ahmed Qureshi, ASC further stated that it has been clearly mentioned in Paragraph No.4 of the writ Petition that due to unforeseen and unavoidable personal reasons the thesis could not be submitted within the stipulated time, therefore, the Petitioner sought extension of time (One Year) vide letter dated 02.09.2015. And the case of Petitioner was kept pending and eventually turned down by the Academic Council in its meeting held on 13.06.2016. However, the Academic Council in the same meeting allowed extension as per University's Rules and Regulations to similarly placed PhD students including Asif Azam (of the same session 2007-F), who has been allowed to make some modification in the thesis before final evaluation but without stipulating the time period but the same is not being followed by them in case of the Petitioner, which is against the Doctrine of Sovereignty developed by this Court in the judgment reported as *Mst. Fatima Faryad and others v. Government of Punjab and others* (2020 CLC 836) wherein it has been held that under the Doctrine of Sovereignty every governmental authority or department is bound to adhered to the commitments, made by them, in letter and spirit. In order to fortify his contentions, he also relied on another judgment passed by a learned Division Bench of this Court in the case of *National Bank of Pakistan v. Iftikhar Rasool Anjum and others* (2017 PLC (C.S.) 453) which was subsequently upheld by the Hon'ble Supreme Court of Pakistan in the case of *Bahadur Khan and others v. Federation of Pakistan through Secretary Ministry of Finance, Islamabad and others* (2017 SCMR 2066).

4. Pursuant to the order dated 06.09.2022, Ch. Farhat Abbas, Advocate with Muhammad Yaqub, Director and Khalid Mehmood, Registrar, University of Engineering,

Taxila and submit that although the Petitioner was not granted extension of time for submission of thesis because he did not fulfill the requirement of the same. When they were confronted how the Academic Council can discriminate the Petitioner by not extending time despite of the fact that Academic Council in its meeting dated 13.06.2016 allowed extension to similarly placed PhD students including Asif Azam (of the same session 2007-F), they had no answer to it. Yet the Syndicate of the University has the authority/mandate to confer Honorary Degrees as per section 22(2)(xxii) of the University of Engineering and Technology, Taxila, Act, 1994 (the "Act"). For ready reference the same is reproduced as under:

22. Powers and duties of the Syndicate.--- (1) .

(2) Without prejudice to the generality of the foregoing powers and subject to the provisions of this Act and the Statutes, the Syndicate shall have the powers to--

(1) .

(xxii) confer Honorary Degrees in accordance with the conditions prescribed;

Therefore, it would be more appropriate if the matter is referred to the Syndicate of the Respondent/University for its decision in accordance with law.

5. Heard.

6. Under the rule of law every citizen of this country has a right of access to justice and dispensation of justice. It is not out of place to emphasize that the preamble of the Constitution which has propounded and highlighted the purpose and objects of the Constitution, the will of the People, and shed light on its salient features envisioned a State and the system of government where principles of equality and social justice shall be fully observed as enunciated by Islam. It also pledged for a State wherein fundamental rights shall be guaranteed including equality of status, equality of opportunity and equality before law. According to the provisions of Article 4 of the Constitution, every citizen has an inalienable right to enjoy the protection of law and to be treated as per law (the Act and the Rules) and no action detrimental to the life, liberty, body, reputation or property of any person shall be taken except in accordance with law. It has been held by the Hon'ble Supreme Court of Pakistan in the judgment reported as "Justice Qazi Faez Isa and others v. President of Pakistan and others" (PLD 2022 Supreme Court 119) that "Every citizen of Pakistan, notwithstanding his status or position, is entitled to due process of law in any action detrimental to his life, liberty, body, reputation or property under Article 4 of the Constitution and safeguarding of his fundamental rights guaranteed under Articles 9 to 28 of the Constitution." It has further been held by the Hon'ble Supreme Court of Pakistan in the judgment reported as "National Commission on Status of Women through Chairperson and others v. Government of Pakistan through Secretary Law and Justice and others" (PLD 2019 Supreme Court 218) that "Article 4 guarantees the right to enjoy the protection of law and to be treated in accordance with the law." Further relied on the judgment reported as "Syed Tahir Hussain Mehmoodi and others v. Agha Syed Liaqat Ali and others" (2014 SCMR 637) wherein it has been observed that "It may not be out of place to mention here that to apply and to adhere to law is not a mere technicality, rather it is duty cast upon the court as per Article 4 of the Constitution of Islamic Republic of Pakistan, 1973 to do so." In the judgment reported as "Watan Party and another v. Federation of Pakistan, and others" (PLD 2011 SC 997), the Hon'ble Full Bench of the apex Court of the Country has held that "Article 4 thereof remained fully operative, which laid down that to enjoy the protection of law and to be treated in accordance with law is the inalienable right of every citizen, wherever he may be, and of every other person for the time being within Pakistan and in particular no action detrimental to the life, liberty, body, reputation or property of any person would be taken

except in accordance with law".

7. Furthermore, Article 5(2) of the Constitution states that Obedience to the Constitution and law is the inviolable obligation of every citizen including the Respondent/ University. As the Petitioner has been died and non-awarding of decree is presumed to exploitation under the provisions of Article 3 of the Constitution.

8. In view of above, as mentioned in Paragraph No.4 of the writ Petition that due to unforeseen and unavoidable personal reasons the thesis could not be submitted within the stipulated time, therefore, the Petitioner sought extension of time (One Year) vide letter dated 02.09.2015, which was declined by the Academic Council but in the same meeting extension was granted to similarly placed PhD students including Asif Azam (of the same session 2007-F) for which the Respondents have no satisfactory reply. The inaction of the Respondents clearly violates the provisions of Article 25 of the Constitution.

9. As the Syndicate of the Respondent/University has the authority/ mandate to confer Honorary Degrees as per section 22(2)(xxii) of the Act, therefore, the Syndicate is directed to consider the case of the Petitioner for awarding Honorary Degree by providing proper hearing to all concerned within a period of one (01) month after receipt of certified copy of this order. The compliance report be submitted to the Deputy Registrar (Judicial) of this Court. However, this order will not be a precedent to refer in future.

10. Disposed of accordingly.

MH/I-21/L

Order accordingly.